

Hong Kong Property

Implications of China's taxation on offshore trusts

China's latest taxation on offshore trusts (20% tax rate) is not a major surprise, given Bloomberg's late-March report ([link](#)). However, the new framework appears stricter than expected, featuring retroactive provisions (e.g., income from 2023 must be declared within 90 days) and enhanced anti-avoidance measures (e.g., obtaining foreign citizenship alone may not eliminate tax obligations). While the move is not specifically aimed at Mainland Chinese purchases of HK property, it still reduces the financial attractiveness of holding Hong Kong real estate—and, more broadly, offshore assets—thereby we consider it directionally negative for HK property. That said, **we believe the impact is manageable, as we estimate <2% of property sales are purchased via entities under Mainland Chinese-controlled offshore trusts**, so this change alone is unlikely to derail the current upcycle in home prices (although we believe the growth momentum will still slow down in 2H26, regardless of this taxation – more in our earlier [report](#)). Arguably, this may also mildly slow down the sales momentum among en-bloc commercial properties and thus drag the pace of property companies' capital recycling. In the near term, the concerns on capital outflow control and rate hike remain two overhangs for the HK residential market, and thus we generally prefer landlords over developers. Our top picks are **Link REIT**, **Swire Properties** and **Hongkong Land**.

- **What's new?** On 24 July, China's Ministry of Finance published a notice on individual income tax on offshore trusts (关于离岸信托个人所得税有关事项的公告; [original policy in Chinese](#)). Effective immediately, assets placed in offshore trusts held by Mainland Chinese tax residents will be subject to a **20% tax rate**, including: (1) the appreciation in value at the time of transfer of shares, property or other assets into offshore trusts; and (2) income from such trusts/offshore entities. Such offshore trusts have long been a gray zone in Chinese tax enforcement, and the move is Beijing's latest effort to capture revenue from the wealth its citizens hold overseas. The rules feature sweeping anti-avoidance provisions. **Those who become foreign citizens or overseas permanent residents but retain their main economic interests in China may still be treated as Chinese tax residents** (and thus the rules still apply to them). Notably, the new rule also has a retroactive clause, stating that **unpaid taxes on assets placed in trusts since January 2023, and on trust income received before 2026, must be settled within 90 days** to avoid penalties for late payment ([Reuters](#)). A detailed English translation of the full policy can be found in the Appendix – Full policy details.
- **A recap on offshore trusts:** Offshore trusts have long been a vehicle for wealthy Mainland Chinese families to hold offshore assets (including listed companies, investments & real estate). However, apart from taxation (which was a gray area), families establish trusts also for many other reasons, including succession planning, asset protection and cross-generation wealth management. According to the Hong Kong Trustees' Association, the total asset size held under HK trusts amounted to HK\$5.1trn as of 2023, of which 55% are assets in Mainland China and Hong Kong, 18% in North America and 13% in Europe. Note that the latest rule does not just apply to trusts established in Hong Kong, but also any other offshore jurisdiction outside of Mainland China (e.g. Singapore).

Mainland China/Hong Kong Property & Conglomerates

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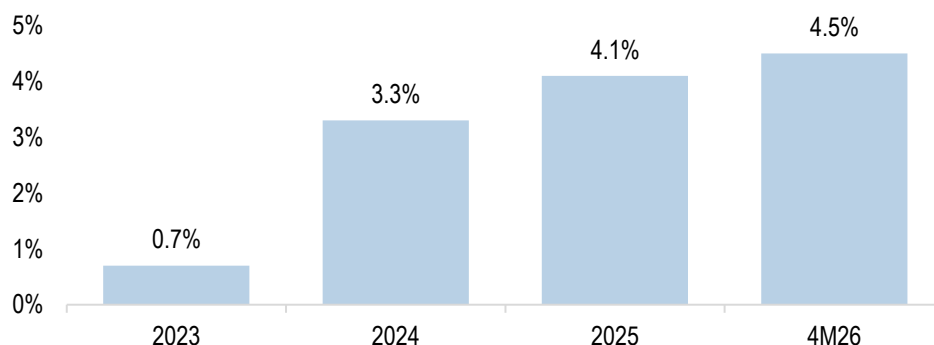
- **The new rules may make holding HK real estate assets less financially attractive, but at least they are not the only target:** First of all, the new framework aims to tax ultra-rich Mainland Chinese individuals' offshore assets, but is not designed to specifically crack down on Mainland Chinese buying real estate properties in Hong Kong (note that the current forex rules do not allow Mainland Chinese to remit money offshore for the purpose of property buying; however, if the source of funding is offshore, e.g. dividend income or salaries generated in HK, Mainland Chinese are allowed to buy properties in HK – for more details, please see our [takeaways from legal expert call](#)). Since the new taxation applies to *all* offshore assets (such as listed equity investments and real estate assets in Singapore), while the new rule does make holding HK real estate assets less financially attractive than before, theoretically speaking this at least does not make holding HK real estate assets less favorable vs. other offshore asset types. That said, **for Mainland Chinese individuals deciding between buying residential properties in Mainland China vs. HK, the gap has now narrowed**, as although capital gain from property resale is also subject to a 20% tax rate (individual income tax) in Mainland China, if the residential asset is held for >5 years and is the family's only home for self-use (满五唯一), the 20% tax rate is exempt (but exemption may not necessarily apply to HK residential properties). Arguably, the move is marginally positive for the Mainland Chinese housing market.
- **What is the potential impact on the HK residential market?** Based on our understanding, specifically for HK real estate assets, the new taxation framework would require Mainland Chinese tax residents to: (1) pay a 20% tax on rental income, although double taxation is unlikely, and thus the extra payment would be calculated after settling local Hong Kong taxes (i.e., for rental income from residential properties, HK levies a 15% tax rate, or 12% effective, and thus the extra nominal tax rate difference is 5%); and (2) pay a 20% tax on capital gains on resale (note: there is no capital gains tax in HK, and thus the 20% tax is fully extra). While there is no official data on the percentage of HK residential transactions that are made through entities under an offshore trust, we can gauge it by the percentage of company buyers, which is 4.5% as of 4M26 (Figure 1). However, since many local homebuyers also hold residential assets through a company (especially for wealthy families/celebrities), we estimate that company buyers that are controlled by a Mainland Chinese tax resident should be <50%, and thus we roughly estimate that, in the extreme scenario where no more non-local Mainland Chinese buy HK properties through offshore trusts (which is unrealistic, in our view), the impact on property sales is likely to be <2%. Among all districts in HK, we believe **Kai Tak will be relatively more impacted** as the district has seen the highest percentage of Mainland Chinese buyers.
- **There could be a broader impact if this applies to all individuals:** The latest taxation only applies to offshore trusts, which mostly target ultra-rich families from Mainland China. However, if the Chinese government scrutinizes taxation for individual “Mainland Chinese tax residents” too, then there could be a broader impact. As a recap, “Mainland Chinese” homebuyers (defined by Mandarin pinyin of last name) account for 32%/23% of HK property sales (primary & secondary combined) by value/volume (Figure 2). We believe the majority of those reside in Hong Kong or have a HK identity card and thus may not necessarily be regarded as “Mainland China tax resident” (note: we estimate that non-local-based Mainland Chinese homebuyers account for 5-10% of total by volume, or 10-15% by value, Table 1). The biggest question lies in whether such homebuyers are defined as “Mainland Chinese tax residents”, which are defined by *either*: (1) having a “residence” in Mainland China (based on hukou/economic interest/family); *or* (2) residing in Mainland China for >183 days within a year. As such, if there is higher scrutiny on the definition, it is possible for Mainland Chinese who live/work in Hong Kong (even if they have no homeownership in Mainland China or have not lived/worked in Mainland China for a long time) to be taxed by Mainland Chinese tax authorities for their rental income/capital gains on HK properties, as long as they still hold

a local hukou of a Mainland Chinese city. Execution is a question mark, because as of now real estate is not yet classified in CRS (common reporting standard), but this remains a risk.

- **There could be some implications on commercial properties too:** In recent years, there have been more “Mainland Chinese buyers” in HK commercial assets (especially office), such as Li Ning (Harbour East) and Alibaba (One Causeway Bay). The new rules would likely apply to offshore trusts (controlled by Mainland Chinese) that hold commercial assets too, and thus this may potentially reduce the momentum in sale transactions (and thus the pace of property companies’ capital recycling). That said, there should be limited impact on leasing (which is our area of focus).

“Company buyers” in HK residential market

Figure 1: HK residential property transactions – % of company buyers



Source: Midland.

“Mainland Chinese buyers” in HK residential market

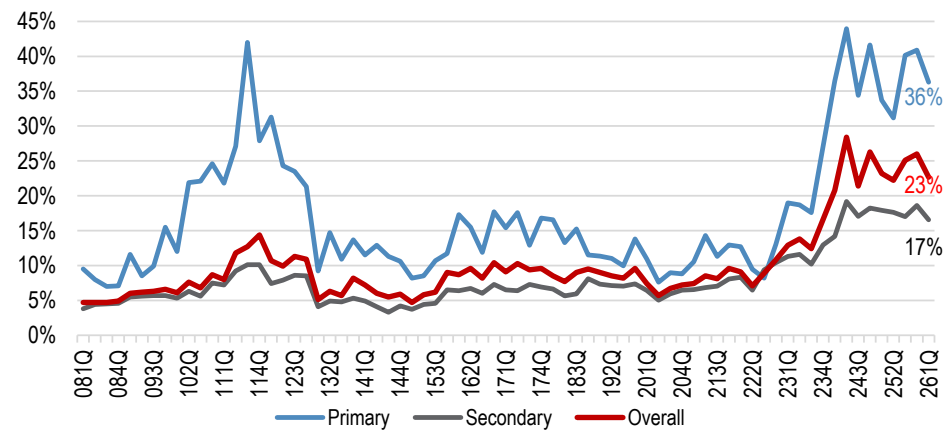
Table 1: HK private residential market – % of buyers who are not holders of Hong Kong Identity Card (HKID)

	Individual buyers who are not HKID holders			
	Volume (units) as % of total		Value (HK\$ bn) as % of total	
FY20/21	110	0.1%	1.1	0.2%
FY21/22	153	0.2%	1.6	0.2%
FY22/23	168	0.3%	1.6	0.4%
FY23/24	700	1.6%	6.8	2.0%
FY24/25	2,997	5.5%	31.3	7.2%

Source: HK Inland Revenue Department.

Note: FY denotes HK government's fiscal year (year ending 31 March). For example, FY24/25 refers to the period from 2Q24 to 1Q25.

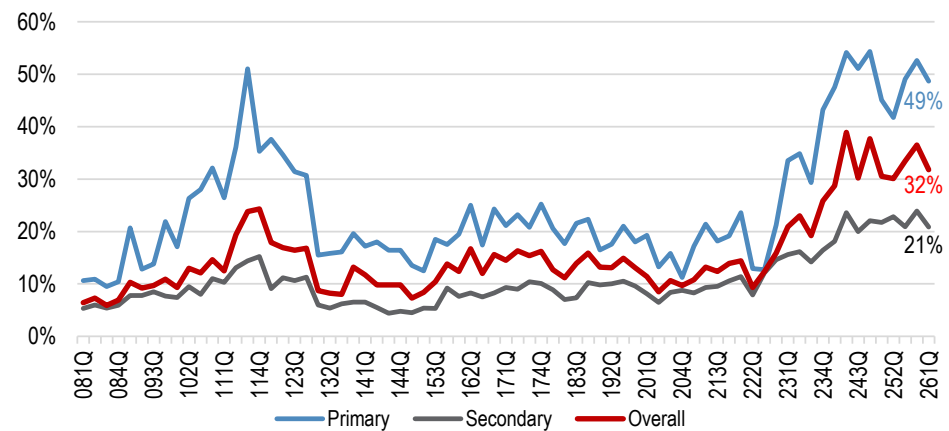
Figure 2: HK private residential market – % of “Mainland Chinese” buyers with a last name in Mandarin pinyin (by volume)



Source: Centaline.

Note: “Mainland Chinese” is defined here using the Mandarin pinyin of the buyer’s last name and does not distinguish the buyer’s current residence or identity. As a result, “Mainland Chinese” who are residing in Hong Kong—as well as local Hong Kong residents with Mandarin-pinyin last names—are also classified as “Mainland Chinese” in this dataset.

Figure 3: HK private residential market – % of “Mainland Chinese” buyers with a last name in Mandarin pinyin (by value)



Source: Centaline.

Note: “Mainland Chinese” is defined here using the Mandarin pinyin of the buyer’s last name and does not distinguish the buyer’s current residence or identity. As a result, “Mainland Chinese” who are residing in Hong Kong—as well as local Hong Kong residents with Mandarin-pinyin last names—are also classified as “Mainland Chinese” in this dataset.

Appendix – Full policy details

Ministry of Finance and the State Taxation Administration – Announcement on Matters Concerning Individual Income Tax on Offshore Trusts (English Translation)

Ministry of Finance, 24 July 2026

[Original article](#)

Note: The below is our own translation and is only for illustrative purposes. Please refer to and rely on the original Chinese version at the link above for the full release.

Article 1

Where an individual transfers property into an offshore trust and/or derives income through an offshore trust, such income shall be declared and individual income tax shall be paid in accordance with this Announcement.

Article 2

An individual's transfer of asset into an offshore trust includes (1) direct transfer to an offshore trust; (2) transfers to an overseas entity that is held, controlled, or managed by an offshore trust or its trustee.

Article 3

Where a resident individual transfers asset into an offshore trust, the taxable income shall be the balance of the market value of the asset at the time of transfer minus the asset's original cost and reasonable expenses. Such income shall be declared and individual income tax paid under "income from transfer of asset."

Article 4

Any income generated during the trust term, whether or not actually distributed, shall be taxed with the resident individual as the taxpayer, and shall be declared and paid annually under "Income from transfer of asset" (balance of total proceeds minus original value and reasonable expenses), or "Interest, dividends, and bonus income". Where trust income has already been declared and taxed, it shall not be declared again upon actual distribution.

Article 5

Upon termination of the offshore trust, the liquidation gains on all offshore trust asset shall be taxable income, to be declared and taxed under "income from interest, dividends and bonuses".

Article 6

When the resident individual becomes a non-resident individual, the individual shall pay the income tax of the balance of the market value of the asset minus the original value.

Article 7

After the resident individual's death, taxable income shall be the balance of the market value of trust asset on the date of death minus the original value. Any unpaid individual income tax payable shall be filed and paid by the trustee or its designated domestic institution.

Article 8

When a non-resident individual transfers asset into an offshore trust but the trust is actually controlled by a resident individual, it shall be deemed that the resident individual has transferred the asset into an offshore trust, and individual income tax shall be declared and paid.

Article 9

Where two or more resident individuals transfer assets into the same offshore trust, the trust asset and income attributable to each individual shall be allocated in proportion to the asset's market value transferred by the individual as a percentage of the total market value. Each individual shall separately declare and pay individual income tax. Where both resident and non-resident individuals transfer assets into the same offshore trust, it shall be treated as though all the assets were transferred by the resident individuals.

Article 10

When a resident individual declares and pays individual income tax, any foreign taxes paid overseas for the offshore trust in accordance with local law may be credited against the current-period tax payable in accordance with law.

Article 11

Individuals who have obtained foreign nationality or long-term/permanent overseas residence, but whose main economic interests are sourced from within China, may be determined to be resident individuals with domicile.

Article 12

Where an offshore trust into which a non-resident individual has transferred asset has any of the following circumstances, it shall be deemed to have distributed income to a resident individual and shall declare and pay individual income tax:

- Trust asset is used to provide a guarantee for a resident individual's debt, or a loan is provided to a resident individual, and such mortgage/guarantee is not released or such loan is not repaid by December 31 of the year;
- Expenses are paid or reimbursed on behalf of a resident individual, or the resident individual is allowed to use trust asset free of charge or at an obviously low price;
- Asset is transferred, expenses are paid, or other economic benefits are provided to a resident individual through a third party;
- The above economic benefits are provided to a related party of the resident individual, or of which the resident individual is the ultimate beneficial owner.

Article 13

An offshore entity refers to various organizations established under foreign law, and that satisfy one of the followings:

- In the preceding tax year, aggregate income such as dividends/bonuses, interest, rent, royalties, asset transfers, and trade/service income that does not bear or bears relatively little operating risk accounts for more than 50% of total profits;
- The number of employees, registered business address, financial accounting, etc. do not meet substantive operating conditions;
- The entity's funds are used to pay individuals' consumption expenditures and asset expenditures unrelated to the enterprise's production and operation;
- Production/operation and other decisions are not actually made by the organization.

Licensed financial institutions such as banks, insurance companies, securities companies, etc. do not fall within the definition of “offshore entity” in this Announcement.

Article 14

Control over an offshore entity or organisation includes:

- Directly or indirectly holding, in aggregate, 25% or more of equity, voting rights, units/shares, rights to income, or similar interests of an offshore entity or organization. For multi-tier indirect holdings, the percentage shall be calculated by multiplying the holding percentages at each tier; if an intermediate tier holding exceeds 50%, it shall be calculated as 100%;
- Exercising substantive control over the offshore entity or organization in terms of funding, operations, procurement/sales, distributions, etc.

Article 15

Tax filing deadline:

- A resident individual transfers asset: March 1 to June 30 of the following year
- A non-resident individual transfers asset: by the 15th of the following month
- During the term of an offshore trust: March 1 to June 30 each year for the preceding year
- Termination: within 15 days of the following month of the completion date of liquidation (tax may be paid in equal 5-year installments if there is difficulty paying the tax on time)
- Death: within 15 days of the month following the date of death (tax may be paid in equal 5-year installments if there is difficulty paying the tax on time)
- Change to non-resident: within 15 days of the month following the date of change.

Article 16

Where a taxpayer cannot provide the value of asset, or the provided value is unreasonable, the tax authorities may request relevant government price/cost authorities and appraisal institutions to assess the asset value.

Article 17

Individuals who with historical tax liabilities arising from offshore trust contributions **between 2023 and 2025** shall declare and pay within **90 days** from the effective date of this Announcement, and no late payment surcharge shall be imposed. Failure to regularize tax liabilities within the prescribed period may result in late payment surcharges and additional fines.

From **January 1, 2026**, resident individuals settling assets into offshore trusts and income generated during the term of offshore trusts shall declare and pay individual income tax in accordance with this Announcement.

Article 18

This Announcement shall take effect as of the date of issuance.

Valuation Summary

Table 2: Hong Kong Property & Conglomerates – Valuation Summary

Company	Stock Code	JPM Rating	Last Close (HK\$)	Market			P/E		Dvd Yield		P/B		Share Price Return			
				Cap US\$M	ADV US\$M	NAV Discount	1FY (x)	2FY (x)	1FY (%)	2FY (%)	1FY (x)	2FY (x)	5D	YTD	1Y	Peak
Hong Kong Property																
Sun Hung Kai Properties	0016.HK	OW	120.70	44,606	93.5	-42%	15.2	14.4	3.3%	3.5%	0.6	0.5	-1%	28%	36%	-18%
CK Asset	1113.HK	OW	47.90	21,380	30.7	-48%	14.3	14.1	3.7%	3.8%	0.4	0.4	0%	25%	36%	-7%
Henderson Land	0012.HK	N	27.52	16,992	34.5	-55%	17.7	14.6	4.6%	4.6%	0.4	0.4	1%	0%	5%	-21%
Sino Land	0083.HK	OW	10.68	13,057	13.2	-41%	20.9	22.9	5.4%	5.4%	0.6	0.6	0%	6%	26%	-20%
New World Development	0017.HK	N	6.65	2,134	6.0	-73%	-12.3	-7.7	0.0%	0.0%	0.1	0.1	0%	-9%	11%	-89%
Wharf Holdings	0004.HK	NC	19.12	7,452	11.8	-	12.8	11.4	2.1%	2.4%	0.4	0.4	0%	-11%	-14%	-38%
Kerry Properties	0683.HK	NC	19.02	3,520	5.0	-	14.8	6.6	7.1%	7.1%	0.3	0.3	-1%	-2%	-1%	-24%
Developers					52.3	-41%	15.4	14.5	3.8%	3.9%	0.5	0.5	0%	16%	25%	-20%
Swire Properties	1972.HK	OW	22.50	16,521	9.5	-52%	16.2	15.6	5.4%	5.6%	0.5	0.5	1%	11%	15%	-14%
Wharf REIC	1997.HK	N	25.12	9,727	14.4	-54%	12.1	12.1	5.1%	5.1%	0.4	0.4	0%	5%	9%	-45%
HK Land (in US\$)	HKLD.SI	OW	7.77	16,565	20.6	-42%	32.8	30.2	3.4%	3.5%	0.5	0.5	3%	14%	30%	-13%
Hang Lung Properties	0101.HK	OW	7.30	4,844	9.1	-73%	11.6	11.1	7.1%	7.1%	0.3	0.3	-4%	-11%	4%	-63%
Hysan	0014.HK	NC	17.59	2,304	5.3	-	8.5	10.2	6.1%	6.2%	0.3	0.3	-1%	-3%	22%	-39%
Landlords					13.9	-49%	20.1	19.1	4.9%	5.0%	0.5	0.5	1%	8%	18%	-26%
Link REIT	0823.HK	OW	38.80	12,778	56.0	-	15.5	15.4	6.5%	6.5%	0.7	0.7	-1%	16%	-5%	-41%
Fortune REIT	778.HK	NC	4.74	1,244	1.6	-	26.5	26.5	7.2%	7.2%	0.4	0.4	2%	0%	3%	-32%
Champion REIT	2778.HK	NC	2.25	1,761	0.6	-	18.0	17.6	6.2%	6.4%	0.3	0.3	0%	-10%	8%	-49%
REITs					45.5	-	16.6	16.5	6.5%	6.5%	0.6	0.6	-1%	12%	-3%	-41%
Hong Kong Property (Overall)					40.7	-40%	16.8	16.0	4.4%	4.5%	0.5	0.5	0%	14%	20%	-23%
CK Hutchison	0001.HK	OW	72.00	35,169	71.2	-37%	8.8	13.7	4.5%	2.9%	0.5	0.5	2%	39%	40%	-8%
Jardine Matheson	JARD.SI	OW	63.62	18,705	24.9	-46%	11.4	11.0	3.9%	4.1%	0.6	0.6	1%	-5%	17%	-21%
Swire Pacific	19.HK	NC	94.35	14,598	10.5	-	11.3	10.4	4.3%	4.6%	0.5	0.5	8%	55%	38%	-1%
Conglomerates					45.6	-40%	10.1	12.3	4.3%	3.6%	0.5	0.5	3%	31%	33%	-10%

Source: Bloomberg Finance L.P., J.P. Morgan estimates. Share prices as of 24 Jul 2026. Note: Bloomberg consensus estimates for Not Covered (NC) companies.

Companies Discussed in This Report (all prices in this report as of market close on 24 July 2026, unless otherwise indicated)
Hongkong Land(HKLD.SI/\$7.77/OW), Link REIT (0823)(0823.HK/HK\$38.80/OW), Swire Properties (1972)(1972.HK/HK \$22.50/OW)

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Hongkong Land (HKLD.SI, HKL SP) Price Chart



Date	Rating	Price (\$)	Price Target (\$)
24-Oct-23	UW	3.25	3
10-Mar-24	UW	3.24	2.85
30-Oct-24	N	3.89	4.1
01-Apr-25	N	4.32	4.5
25-Apr-25	OW	4.22	4.9
15-Jul-25	OW	6.28	6.9
19-Sep-25	OW	6.65	7.6
21-Jan-26	OW	8.41	8.9
04-Feb-26	OW	8.67	10
08-Mar-26	OW	8.38	10.7

Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Sep 28, 2000. All share prices are as of market close on the previous business day.

Link REIT (0823) (0823.HK, 823 HK) Price Chart



Date	Rating	Price (HK\$)	Price Target (HK\$)
15-Aug-23	OW	38.35	51
24-Oct-23	N	35.45	38
09-Nov-23	N	38.40	39
02-Jan-24	OW	43.85	53
09-Apr-24	OW	34.55	43
30-May-24	OW	34.70	42
04-Oct-24	OW	39.15	45
07-Nov-24	OW	38.05	43
03-Jul-25	OW	42.20	49
14-Aug-25	OW	44.60	48
21-Nov-25	N	38.80	38
21-Jan-26	N	35.44	36
29-May-26	N	40.30	42
26-Jun-26	OW	36.18	43

Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Feb 06, 2006. All share prices are as of market close on the previous business day.

Swire Properties (1972) (1972.HK, 1972 HK) Price Chart



Date	Rating	Price (HK\$)	Price Target (HK\$)
10-Aug-23	N	18.38	18
24-Oct-23	N	15.08	15
15-Mar-24	N	16.46	16.5
09-Apr-24	OW	15.46	18
30-Jul-24	OW	12.72	15
09-Aug-24	OW	14.50	16.2
13-Mar-25	OW	16.14	19
04-Jun-25	OW	18.14	21
29-Jun-25	OW	19.70	24
21-Jan-26	OW	23.22	27
13-Mar-26	OW	24.46	30

Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Sep 26, 2012. All share prices are as of market close on the previous business day.

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